

SENATE BILL 2638

By Roberts

AN ACT to amend Tennessee Code Annotated, Title 39;
Title 40 and Title 55, Chapter 10, relative to driving
under the influence of an intoxicant.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 55-10-409, is amended by adding
the following as a new subsection:

(f) Notwithstanding another law to the contrary, if a person convicted of a
violation of § 55-10-401 is eligible for a restricted license under subsection (a) and the
court determines pursuant to this section that it is appropriate to order the person to
operate only a motor vehicle equipped with an ignition interlock device, then the person
may request, and the court may order, the installation and use of a transdermal
monitoring device in lieu of ordering the person to only operate a motor vehicle with an
ignition interlock device. The person shall pay all costs associated with the transdermal
monitoring device and is not eligible for assistance from the electronic monitoring
indigency fund under § 55-10-419.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.